

Raghawendra Shankar Mishra v. State of U.P.

Allahabad High Court · Division Bench · 5 August 2022 · WRIT - C No. - 22254 of 2022 · **Writ disposed; liberty to file para 6.8 objection with stay of coercive action.**

HEADNOTE

A challenge to a notice and a provisional assessment and revenue-fixation order was not examined on merits. The writ was disposed of with liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided in accordance with law after hearing within the next four weeks, with a stay of coercive recovery for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a notice dated 5 February 2021 and a subsequent provisional assessment and revenue-fixation order dated 16 June 2021 of the distribution licensee, and sought a mandamus to issue a final assessment bill after considering his objection dated 16 February 2021. Counsel for the Power Distribution Corporation stated on instructions that the petitioner might file an objection against the impugned demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

para-6.8-objection-alternate-remedy

HOLDING

Without expressing any opinion on the merits of the challenge to the notice and the provisional assessment and revenue-fixation order, the Court disposed of the writ with liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the assessing officer within four weeks; if so submitted, the objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action on the impugned demand is to be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against a provisional assessment demand was disposed of by relegating the consumer to an objection under para 6.8, to be decided after hearing, without any ruling on the validity of the notice or assessment. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The assessing officer was directed to decide a para 6.8 objection in accordance with law within a fixed period after hearing, and coercive action on the impugned demand was stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE NOTICE DATED 5.2.2021 AND THE PROVISIONAL ASSESSMENT AND REVENUE-FIXATION ORDER DATED 16.6.2021

The Court expressly declined to express any opinion on the merits. ¶ 1